

THOMAS, J., concurring in judgment

should serve. Although the Privileges or Immunities Clause grants “United States citizens a certain collection of rights—*i. e.*, privileges or immunities—attributable to that status,” the Court has interpreted the Clause “quite narrowly.” *McDonald*, 561 U. S., at 808 (opinion of THOMAS, J.). Perhaps to compensate for this limited view of the Privileges or Immunities Clause, it has incorporated individual rights against the States through the Due Process Clause. *Id.*, at 809.

Due process incorporation is a demonstrably erroneous interpretation of the Fourteenth Amendment. As I have explained before, “[t]he notion that a constitutional provision that guarantees only ‘process’ before a person is deprived of life, liberty, or property could define the substance of those rights strains credulity for even the most casual user of words.” *Id.*, at 811. The unreasonableness of this interpretation is underscored by the Court’s struggle to find a “guiding principle to distinguish ‘fundamental’ rights that warrant protection from nonfundamental rights that do not,” *ibid.*, as well as its many incorrect decisions based on this theory, see *Obergefell v. Hodges*, 576 U. S. 644 (2015); *Roe v. Wade*, 410 U. S. 113 (1973); *Dred Scott v. Sandford*, 19 How. 393 (1857).

I “decline to apply the legal fiction” of due process incorporation. *Timbs v. Indiana*, 586 U. S. 146, 159 (2019) (THOMAS, J., concurring in judgment) (internal quotation marks omitted). As a result, I part ways with the Court on both its affirmative argument about the Fourteenth Amendment and its treatment of *Apodaca*, in which five Justices agreed the Sixth Amendment included a right to unanimity but a different majority concluded that the right did not apply to the States. See *ante*, at 93–96.

I would accept petitioner’s invitation to decide this case under the Privileges or Immunities Clause. The Court conspicuously avoids saying which Clause it analyzes. See, *e. g.*, *ante*, at 88–89, 93. But one assumes from its silence that the Court is either following our due process incorporation precedents or believes that “nothing in this case turns on”